Republic of the Philippines
Bangsamoro Autonomous Region in Muslim Mindanao
BANGSAMORO PARLIAMENT
Bangsamoro Government Center, Cotabato City

THIRD REGULAR SESSION

RESOLUTION NO. 201

RESOLUTION URGING THE MINISTRY OF HEALTH (MOH) AND BANGSAMORO DARUL IFTA (BDI), IN COORDINATION WITH MORO WAQF FOUNDATION, INC. AND OTHER INSTITUTIONS, TO INSTITUTIONALIZE THE IMPLEMENTATION OF *IBADAH*-FRIENDLY HOSPITAL SERVICES WITHIN THE BANGSAMORO AUTONOMOUS REGION IN MUSLIM MINDANAO

WHEREAS, under the Preamble of Republic Act No. 11054 otherwise known as the Bangsamoro Organic Law, "*imploring the aid of Almighty God, in recognition of the aspirations of the Bangsamoro people and other inhabitants in the Autonomous Region in Muslim Mindanao to establish an enduring peace as the basis of justice, balance society and asserting their Rights to conserve and develop their patrimony, reflective of their system of life as prescribed by their faith, in harmony with their Customary laws, cultures and traditions, within the framework of the Constitution...;*"

WHEREAS, Article IX, Basic Rights, Section 4 of the same law provides that:

"Customary Rights and Traditions. - The customs, beliefs, and traditions of the Bangsamoro people are hereby recognized, protected, and guaranteed.

The Parliament shall adopt measures to ensure mutual respect and protection of the distinct beliefs, customs, and traditions of the Bangsamoro people and the other inhabitants in the Bangsamoro Autonomous Region for Muslim Mindanao.

No person in the Bangsamoro Autonomous Region for Muslim Mindanao shall be subjected to any form of discrimination on account of creed, religion, ethnic origin, parentage, or gender."

WHEREAS, due to the obligatory nature, practicing the Islamic faith is part of the daily life of Muslims which, to a certain degree, also affects the non-Muslim residents of the Bangsamoro region;

WHEREAS, mankind is created not for any purpose but for worshipping (*ibadah*) the Almighty;

WHEREAS, the Bangsamoro Government as the seat of power, through its moral governance program, has the obligation to provide for the moral needs and identity of its people a community which devotes itself in worship, equipped with moral values which will accrue to the benefit of the society and thus, the need to support this cause;

WHEREAS, considering that the COVID-19 pandemic has limited the Muslim religious leaders outside of the hospital premises in providing spiritual care for patients, causing dilemma on the performance of religious rights and services for the patients, such as the fulfillment of their obligatory prayers, including the performance of religious rituals for the dead specifically those afflicted by infectious diseases such as COVID-19;

WHEREAS, despite its necessity owing to the fact that majority of the people living in the Bangsamoro Autonomous Region in Muslim Mindanao (BARMM) are Muslim-Filipinos, there is inadequacy in spiritual care services such as provision of proper prayer space with ablution areas, placement of *qiblat* marks or signages in hospitals, among others;

WHEREAS, the Department of Health (DOH) through various issuances supports policy development and implementation of services and facilities for Muslim patients, employees, and affiliates, to wit:

Department Memorandum 2009-0107 on Strengthening the religious rights of employees and affiliates on wearing of Muslim attire;

Memorandum No. 47, s. 2003 on establishment of prayer room within the hospital;

Department Memorandum No. 2009-0162 on placement of qiblat marks in patient rooms;

Administrative Order No. 55, s. 2001 on the release of Muslim cadavers within 24 hours;

Memorandum Circular No. 2014-0024 on time adjustment during Ramadhan and excusing employees to attend Friday and Eid prayers and enjoy Muslim holidays; and

Administrative Order No. 2015-0052 on provision of spiritual support to patients as part of the hospice care program.

WHEREAS, the Moro Waqf Foundation, Inc., a non-profit foundation duly registered with the Securities and Exchange Commission, having a permanent address at Cotabato Regional and Medical Center, Cotabato City, with its President Dr. Sherjan Kalim, is currently spearheading the advocacy for the implementation of *Ibadah*-friendly hospital services in the Philippines;

WHEREAS, thru the intervention and support of the government, in this case the Ministry of Health and Bangsamoro Darul Ifta, in mandating all government and private health facilities particularly hospitals to implement *Ibadah*-friendly hospital services, the obligation of the Bangsamoro Government to its people shall be fulfilled;

NOW, THEREFORE, be it

RESOLVED, as it is hereby resolved by the Bangsamoro Transition Authority, to urge the Ministry of Health (MOH) and Bangsamoro Darul Ifta (BDI), in coordination with Moro Waqf Foundation, Inc. and other institutions, to institutionalize the implementation of *ibadah*-friendly hospital services within the Bangsamoro Autonomous Region in Muslim Mindanao.

RESOLVED, FURTHER, to forward the foregoing Resolution to the Ministry of Health (MOH), the Bangsamoro Darul Ifta (BDI), the Moro Waqf Foundation, Inc., and other institutions and hospitals within the BARMM, for information and appropriate consideration.

ADOPTED, Jumada Al-Akhirah 21, 1443/January 25, 2022.

Certified Correct:

PROF RABY B. ANGKAL
Secretary-General

Attested:

ATTY. ALI PANGALIAN M. BALINDONG
Speaker

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